International Law

LAWS2000 & LAWS8015

International Dispute Settlement

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International Law

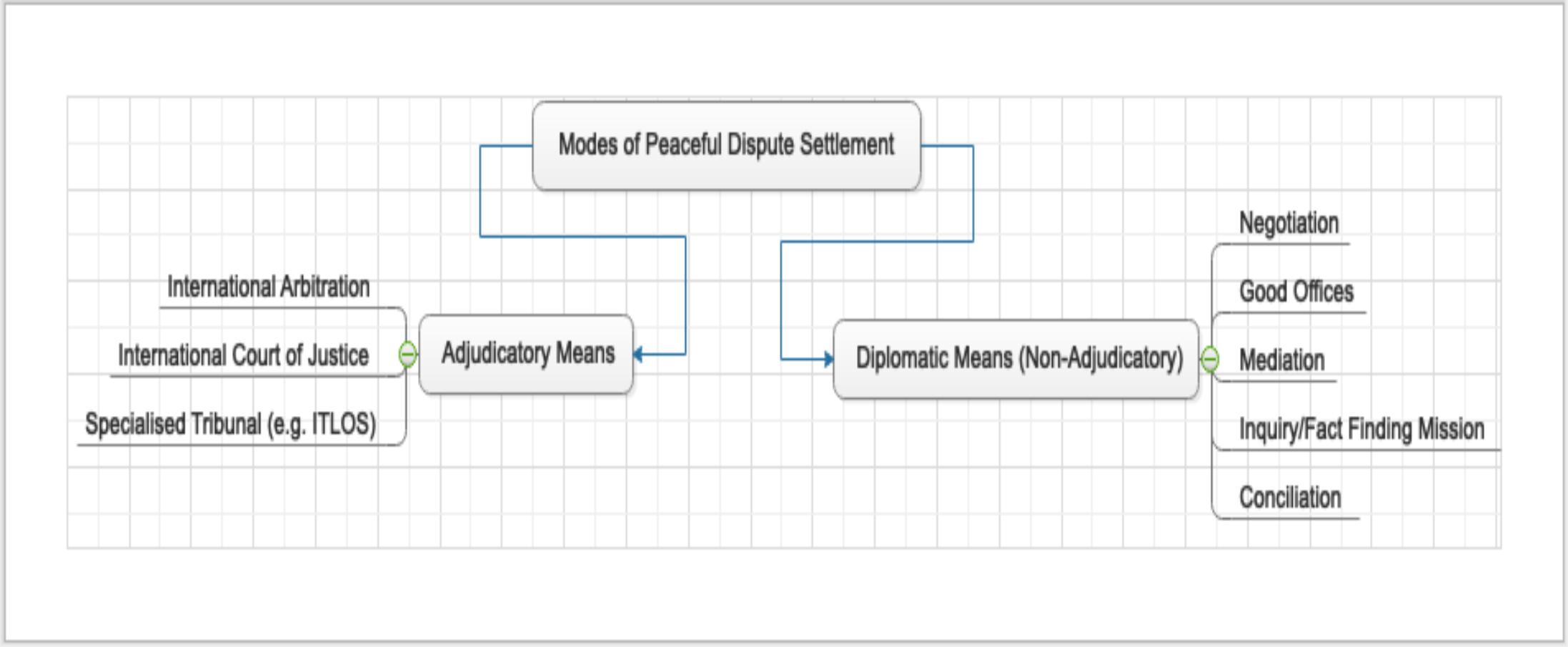
DISPUTE SETTLEMENT: PRELIMINARY OBSERVATIONS

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➔ Disputes over facts, the application of law, and jurisdiction are common.

➔ The peaceful settlement of disputes is central to international law and international relations: seeks to maintain peace and stability by resolving international disputes through peaceful means before they escalate.

Range of means to resolve disputes peacefully



Range of means to resolve disputes peacefully

Article 2 (3) UN Charter

> The Organization and its Members, in pursuit of the Purposes stated in Article 1, shall act in accordance with the following Principles.
>
> …
>
> All Members shall settle their international disputes by peaceful means in such a manner that international peace and security, and justice, are not endangered.
> …

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OVERVIEW

Part A: Settlement of Disputes under General International Law

- ✓ Meaning/Existence of a dispute
- ✓ Obligation to pursue peaceful settlement
- ✓ Modes of dispute settlement

Part B: International Court of Justice: Some Practical Considerations (online)

- ✓ The Court's jurisdiction
- ✓ Expression of consent
- ✓ Provisional measures
- ✓ Legal effect of ICJ decisions

Part C: International Institutions and Dispute Settlement (online)

- ✓ Regional organisations
- ✓ Settlement of international economic disputes

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PART A

Peaceful Settlement of Disputes under International Law

- Meaning/Existence of a dispute
- Obligation to pursue peaceful settlement
- Modes of dispute settlement

The importance of establishing the existence of a dispute

- ➔ The existence of a dispute may not always be self- evident and at times it may itself be disputed (i.e., 'a dispute whether there is a dispute').
- ➔ The existence of an international dispute can play a decisive role in establishing an international court's or tribunal's jurisdiction. If a dispute does not exist at the date of institution of legal proceedings, the adjudicating body has no jurisdiction to deal with the case.
- ➔ One of the disputing parties could deny the existence of an international dispute in order to contest the jurisdiction of an international court or tribunal.

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MEANING OF DISPUTE



A legal dispute is 'a disagreement on a point of law or fact, a conflict of legal views or interests between persons'.

Mavrommatis Palestine Concessions (Greece v Great Britain) (Judgment No 2) [1924] PCIJ Series A 11].



'Whether there exists an international dispute is a matter for objective determination' and that 'the mere denial of the existence of a dispute does not prove its non-existence'

Interpretation of Peace Treaties with Bulgaria, Hungary and Romania, First Phase (Advisory Opinion) [1950] ICJ Rep 65, 74]

Clearly opposite views and awareness

A dispute is said to exist when it is demonstrated that the two sides 'hold clearly opposite views' with respect to the issue in question. Specifically, a dispute exists when it is shown that 'the claim of one party is positively opposed by the other' and that 'the respondent was aware, or could not have been unaware, that its views were "positively opposed" by the applicant'.

South West Africa (*Ethiopia v South Africa, Liberia v South Africa*) (Preliminary Objections) (Judgment) [1962] ICJ Rep 328.

- More than mere friction
- Need for communication (see also Marshall Island vs UK ICJ, 2016)
- Low threshold

Based on the examination of the facts

The determination of the existence of a dispute between the parties '**requires an examination of the facts**'.

Application of the International Convention on the Elimination of All Forms of Racial Discrimination (Georgia v Russian Federation) (Preliminary Objections) (Judgment) [2011] ICJ Rep 70 para 30.

➔ Public statements
➔ Other diplomatic exchanges between the parties (e.g., bilateral diplomatic exchanges between the parties demonstrating their conflicting claims are usually the strongest evidence of the existence of a territorial dispute).

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Obligation to settle through peaceful means

Article 2(3), UN Charter:
'All Members shall settle their international disputes by peaceful means in such a manner that international peace and security, and justice, are not endangered.'

Article 2(4), UN Charter:
"All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state…'

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Beyond the UN Charter

- ✓ Charter of the Organization of American States (Article 2(c)), (1948)
- ✓ Declaration on Principles of International Law concerning Friendly Relations and Co-operation among States (1970)
- ✓ Manila Declaration on the Peaceful Settlement of International Disputes (1982)
- ✓ Declaration on the Prevention and Removal of Disputes (1988)
- ✓ Constitutive Act of the African Union (Article 4 (e)), (2000)

➔ **Binding under customary international law**.

Military and Paramilitary Activities in and against Nicaragua (Nicaragua v United States of America) (Judgment) [1986] ICJ Rep 14 para 290.

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An 'obligation of conduct' not an obligation of result.

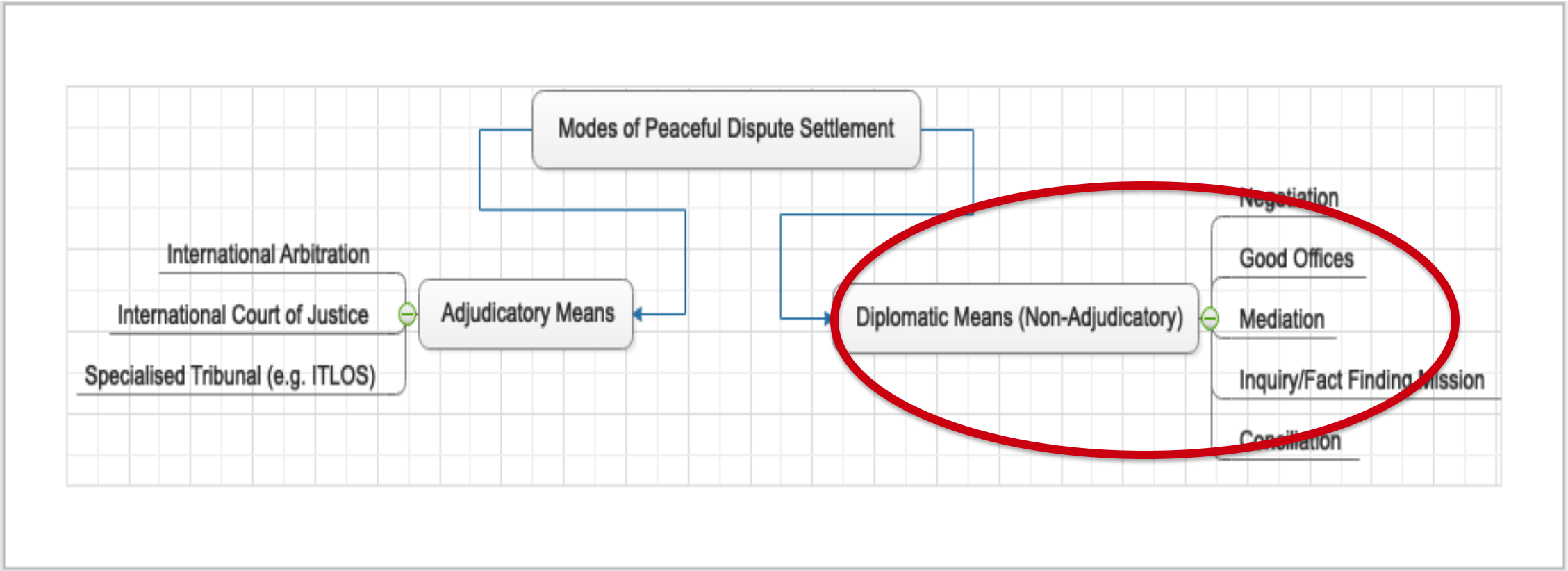
➔States are not legally obliged to reach any particular settlement on their disputes (which is why some disputes last for decades).

Article 33(1), UN Charter

'The parties to any dispute, the continuance of which is likely to endanger the maintenance of international peace and security, shall, first of all, seek a solution by…'

- **Negotiation**
- **Inquiry**
- **Mediation**
- **Conciliation**
- **Arbitration**
- **Judicial settlement**
- **Resort to regional agencies or arrangements**
- **Other peaceful means of their own choice.'**

Range of means to resolve disputes peacefully



See also *Handbook on the Peaceful Settlement of Disputes between States:* *https://digitallibrary.un.org/record/181782?ln=en*

Diplomatic Modes of Dispute Settlement

Negotiation

- Negotiation allows the parties to retain control of a dispute without involving third parties, so it is not that surprising that governments find it so attractive.
- United Nations **General Assembly Resolution 53/101 (1998)** provides principles and guidelines for international negotiations (e.g. 'good faith', 'constructive atmosphere', 'refrain from any conduct which might undermine the negotiations and their progress').
- Presupposes, 'a genuine attempt by one of the disputing parties to engage in discussions with the other disputing party, with a view to resolving the dispute'. *North Sea Continental Shelf Cases* (Federal Republic of Germany v Denmark and Netherlands) (Judgment) [1969] ICJ Rep 3 para 85

Diplomatic Modes of Dispute Settlement

Good Offices

➔ When a third party – usually a neutral person which is deemed impartial and trustworthy by both parties – offers to facilitate and support potential efforts to enter into direct negotiations (e.g., UN good offices mission in Lebanon) (e.g., France 1970s).

Mediation

➔ When a third party – usually a neutral person which is deemed impartial and trustworthy by both parties – assumes a more direct role in negotiations and suggests a framework of settlement or possible solutions (e.g. Richard Holbrooke, Bosnian War).

➔ The solutions offered by the mediator are not binding.

Diplomatic Modes of Dispute Settlement

Inquiry or Fact-Finding Mission

When parties disagree over the factual circumstances of their dispute.

- ✓ E.g. 'UN International Commission of Inquiry in Syria' tasked with investigating alleged violations of international human rights in Syria since 2011.
- ✓ E.g., Joint Investigation Team on the circumstances surrounding the shooting down of a Malaysian Airlines plane in Ukraine in 2014. It held Russia responsible. (Russia rejected its findings).

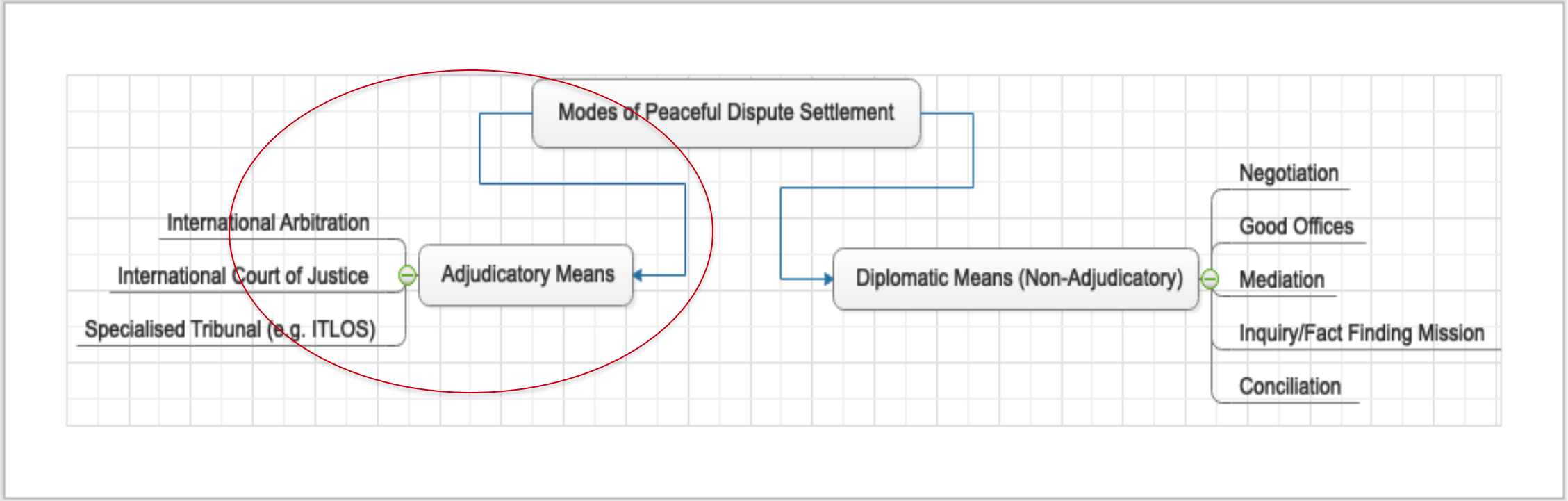
Diplomatic Modes of Dispute Settlement

Conciliation

- ✓ Third party (e.g., group of experts) entrusted by the parties, produces a report with non-binding recommendations.
- ✓ The report of the conciliatory body will present all the relevant facts of the case and the positions of the parties and suggest a possible solution/way forward.
- ✓ Parties may use report of the conciliatory body to negotiate a settlement but they are not bound by it.

➔ E.g., Conciliation Commission, established under the UN Law of the Sea Convention, between Timor-Leste and Australia in relation to the delimitation of the maritime boundary in the Timor Sea.

Range of means to resolve disputes peacefully



Adjudicatory Modes of Dispute Settlement

International Arbitration

➔ Founded upon the principle of **CONSENT**

➔ Consent can be given in a number of ways:

- ✓ By becoming party to a treaty (bilateral or multilateral) that provides for arbitration in the case of future disputes. (UNCLOS)
- ✓ Through a 'special agreement' (*compromis*) whereby the parties agree to submit a particular dispute to arbitration – after a dispute has arisen.

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Adjudicatory Modes of Dispute Settlement

International Arbitration

➔ States maintain close control over the whole process
1. Composition (number and identity of judges)
2. Rules to be applied (e.g., specific treaty, national law, etc.)
3. May choose to keep proceedings confidential

➔ Procedural rules (i.e., it can be faster and more flexible)
➔ Arbitral tribunals are ad hoc/temporary.
➔ The judgments/final decisions (termed 'Arbitral Awards') are final and binding upon the parties.

Adjudicatory Modes of Dispute Settlement

International Court of Justice

- The principal judicial organ of the UN, based in the Hague, Netherlands.
- It can hear and resolve different types of disputes between the 193 UN Member States.
- Significant contribution to the development of international law.
- Whilst the doctrine of precedent does not exist in international law, judges and scholars refer to the 'case law of the ICJ' as if it were common law in the classic sense.
- Composition
  - 15 regular judges, elected by the UN Security Council and and the General Assembly for a term of 9 years.
  - Disputing parties may in principle appoint an ad hoc judge.

Adjudicatory Modes of Dispute Settlement

International Court of Justice

The ICJ may entertain **two types of cases**:

- ➔ Legal disputes between States submitted to it by them (contentious cases)
  - Binding between parties only
- ➔ Requests for advisory opinions on legal questions referred to it by United Nations organs and specialized agencies (advisory proceedings). (see Art. 96 UN Charter and Art. 65 Statute of the ICJ)
  - Non-binding

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Adjudicatory Modes of Dispute Settlement

International Court of Justice



Diego Garcia, one of the Chagos islands

INTERNATIONAL COURT OF JUSTICE

REQUEST

FOR ADVISORY OPINION

transmitted to the Court pursuant to General Assembly resolution 71/292 (A/71/L.73) of 22 June 2017

LEGAL CONSEQUENCES OF THE SEPARATION OF THE CHAGOS ARCHIPELAGO FROM MAURITIUS IN 1965

COUR INTERNATIONALE DE JUSTICE

REQUÊTE

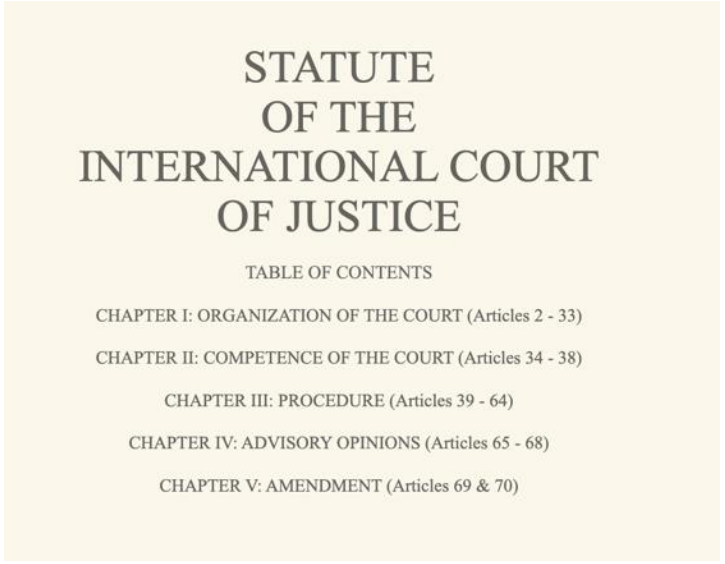
POUR AVIS CONSULTATIF

transmise à la Cour en vertu de la résolution 71/292 (A/71/L.73) de l'Assemblée générale du 22 juin 2017

EFFETS JURIDIQUES DE LA SÉPARATION DE L'ARCHIPEL DES CHAGOS DE MAURICE EN 1965

International Law

DISPUTE SETTLEMENT



STATUTE
OF THE
INTERNATIONAL COURT
OF JUSTICE

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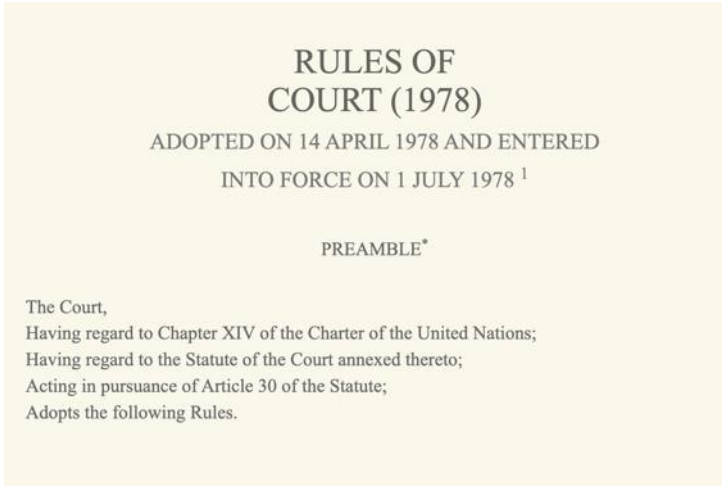
CHAPTER I: ORGANIZATION OF THE COURT (Articles 2 - 33)

CHAPTER II: COMPETENCE OF THE COURT (Articles 34 - 38)

CHAPTER III: PROCEDURE (Articles 39 - 64)

CHAPTER IV: ADVISORY OPINIONS (Articles 65 - 68)

CHAPTER V: AMENDMENT (Articles 69 & 70)



RULES OF
COURT (1978)

ADOPTED ON 14 APRIL 1978 AND ENTERED
INTO FORCE ON 1 JULY 1978 [1]

PREAMBLE*

The Court,
Having regard to Chapter XIV of the Charter of the United Nations;
Having regard to the Statute of the Court annexed thereto;
Acting in pursuance of Article 30 of the Statute;
Adopts the following Rules.

International Court of Justice (Rules of Procedure)

Art. 43 (1) ICJ Statute: written and oral proceedings.

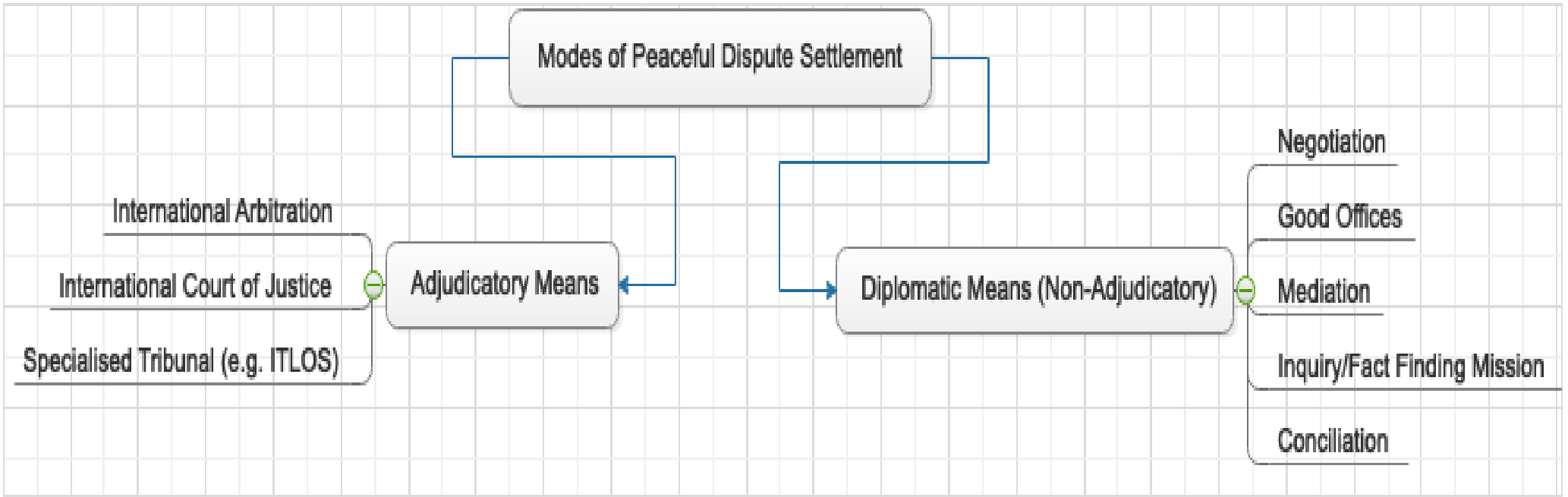
Rules of Court (1978 as amended)

- Institution of proceedings (Arts 38–43)
- Written proceedings (Arts 44–53)
- Oral proceedings (Arts 54–72)

Incidental proceedings

- Interim protection (Arts 73–78 ICJ Rules
- Preliminary objections (Art. 79 ICJ Statute),
- Counter-claims (Art. 80),
- Intervention (Arts 81–86,
- Discontinuance (Arts 88–89).

Range of means to resolve disputes peacefully



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Part B

(available on Echo360)

The International Court of Justice: Some Practical Considerations

1. The Court's jurisdiction
2. Expression of consent
3. Provisional measures
4. Legal effect of ICJ Decisions

International Law

ICJ JURISDICTION: ACCESS TO THE COURT

ICJ jurisdiction is based on Article 38 of the Statute.

Only sovereign states are allowed to be parties in cases before the Court

- Non-state entities cannot bring a case to the Court (Art 34)
- Intergovernmental international organizations, including the UN, cannot be a party to a case before the Court, but they can ask for advisory opinions (Arts 65 - 68).

The Court's jurisdiction, like any international judicial or arbitral body, is based on the consent of states.

- The Court can only handle disputes if the parties involved have consented to the Court's jurisdiction in the specific case or in a category of disputes that the existing case is part of.

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HOW TO EXPRESS CONSENT TO ICJ JURISDICTION

Article 36 of the ICJ Statute outlines the various ways in which a state can express consent to the Court's jurisdiction.

1. Through an explicit agreement (*compromis*), where parties agree to submit a particular dispute to the Court.
2. Becoming a party to an international treaty that specifies disputes can be brought before the Court, contingent on the inability of the parties to resolve the dispute by other means.
3. Making a declaration under article 36(2) of the ICJ Statute and accepting the Court's jurisdiction in relation to future international legal disputes with another state accepting the same obligation (*'optional clause'*).
4. Doctrine of *forum prorogatum*, where a state that has not consented to the Court's jurisdiction at the time an application is filed against it subsequently does so.

Court has competence to rule on its own jurisdiction (*compétence de la competence*) - Art 36(6) ICJ Statute.

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PROVISIONAL MEASURES

Art 41, ICJ Statute: "The Court shall have the power to indicate, if it considers that circumstances so require, any provisional measures which ought to be taken *to preserve the respective rights of either party*."

Provisional measures are meant to protect disputing states from taking actions that could render the decision of the court or tribunal meaningless.

- The Court only needs to satisfy itself that a) the absence of jurisdiction is not manifest and b) the rights for which protection is sought are at least plausible.
- Provisional measures are only justified if there is a real and imminent risk that irreparable harm will occur before the final decision is given
- There must be a link between the rights for which protection is sought and the provisional measures requested. The Court must ensure that the provisional measures requested are appropriate and necessary to protect the alleged rights.

Provisional Measures, Lagrand Case (Germany v. United States Of America) 2001

"The object and purpose of the Statute is to enable the Court to fulfil the functions provided for therein, and, in particular, the basic function of judicial settlement of international disputes by binding decisions in accordance with Article 59 of the Statute. The context in which Article 41 has to be seen within the Statute is to prevent the Court from being hampered in the exercise of its functions because the respective rights of the parties to a dispute before the Court are not preserved. It follows from the object and purpose of the Statute, as well as from the terms of Article 41 when read in their context, that the power to indicate provisional measures entails that such measures should be binding, inasmuch as the power in question is based on the necessity, when the circumstances call for it, to safeguard, and to avoid prejudice to, the rights of the parties as determined by the final judgment . The contention that provisional measures indicated under Article 41 might not be binding would be contrary to the object and purpose of that Article." (Para 102)

International Law

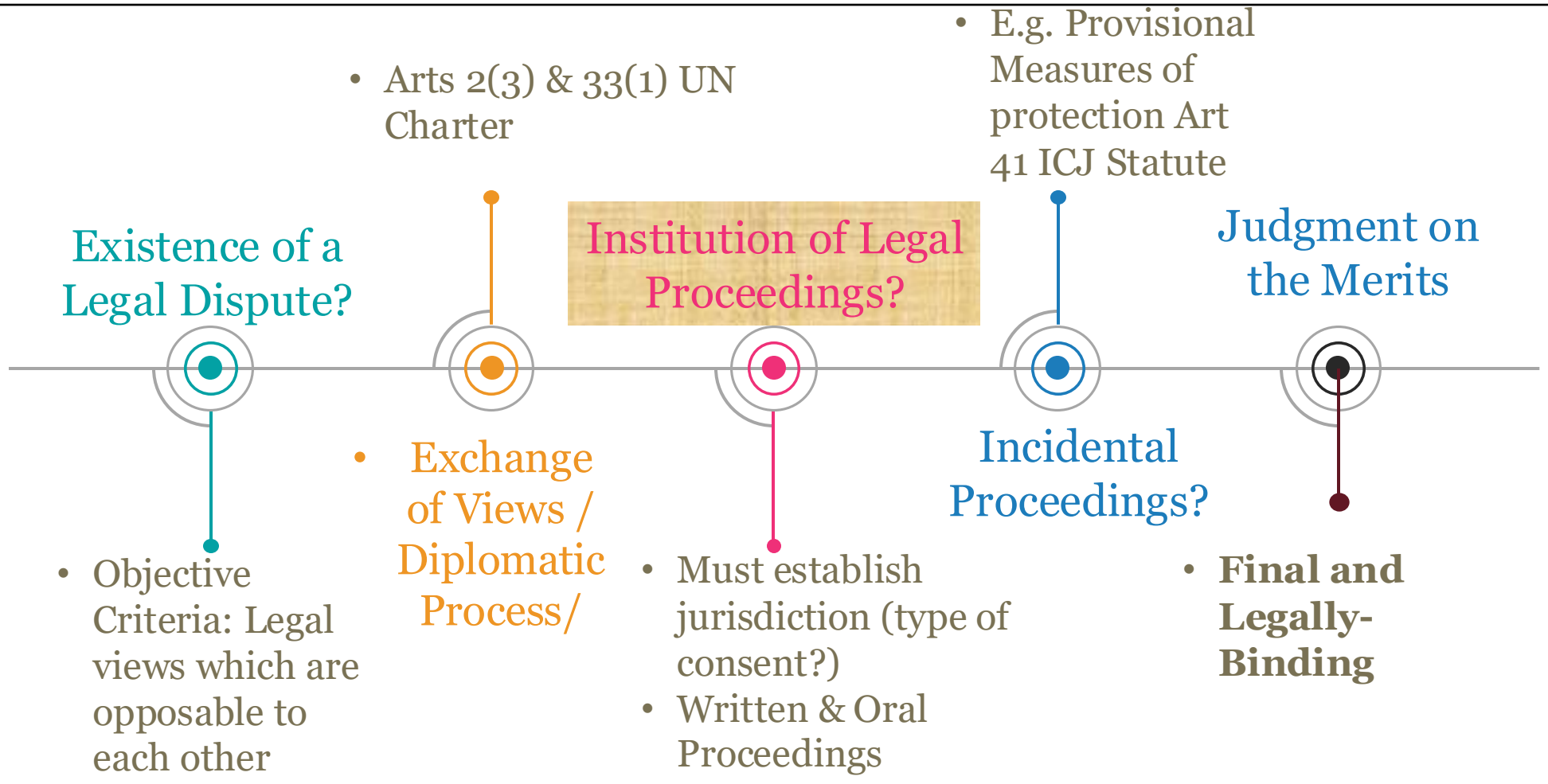
EFFECTS OF THE ICJ DECISIONS

Art 60, ICJ Statute: "The judgment is final and without appeal. In the event of dispute as to the meaning or scope of the judgment, the Court shall construe it upon the request of any party."

A judgment by the Court is final and without appeal, but it is only binding on the parties to the dispute and cannot oblige third parties. (see also Arts 59 & 61, ICJ Statute).

➔ Art 94,UN Charter obliges members of the UN to comply with the decisions of the Court, and if a party does not comply, the other party may bring the matter before the UN Security Council.

➔ UN Security Council can make recommendations or decide on measures to be taken to give effect to the judgment if it deems necessary, according to article 94(2) of the UN Charter.


Existence of a Legal Dispute?
Objective Criteria: Legal views which are opposable to each other
Arts 2(3) & 33(1) UN Charter
Exchange of Views / Diplomatic Process/
Institution of Legal Proceedings?
Must establish jurisdiction (type of consent?)
Written & Oral Proceedings
E.g. Provisional Measures of protection Art 41 ICJ Statute
Incidental Proceedings?
Judgment on the Merits
Final and Legally-Binding

Part C

(available on Echo360)

International Institutions and Dispute Settlement

1. Regional Organisations
2. Settlement of International Economic Disputes

Regional Organisations

Article 33 (1), UN Charter

'The parties to any dispute, the continuance of which is likely to endanger the maintenance of international peace and security, shall, first of all, seek a solution by negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice'.

Regional Organisations

Article 52, UN Charter

1. Nothing in the present Charter precludes the existence of regional arrangements or agencies for dealing with such matters relating to the maintenance of international peace and security as are appropriate for regional action provided that such arrangements or agencies and their activities are consistent with the Purposes and Principles of the United Nations.
2. The Members of the United Nations entering into such arrangements or constituting such agencies shall make every effort to achieve pacific settlement of local disputes through such regional arrangements or by such regional agencies before referring them to the Security Council.
3. The Security Council shall encourage the development of pacific settlement of local disputes through such regional arrangements or by such regional agencies either on the initiative of the states concerned or by reference from the Security Council…

Regional Organisations

- ✓ African Union
- ✓ Organization of American States
- ✓ The Arab League
- ✓ Europe
- ✓ ASEAN

Regional Organisations

African Union

- ✓ Protocol Relating to the Establishment of the Peace and Security Council of the African Union.

> **Article 4**
>
> The Peace and Security Council shall be guided by the principles enshrined in the Constitutive Act, the Charter of the United Nations and the Universal Declaration of Human Rights. It shall, in particular, be guided by the following principles:
>
> a. peaceful settlement of disputes and conflicts;
> b. early responses to contain crisis situations so as to prevent them from developing into full-blown conflicts…

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DISPUTE SETTLEMENT

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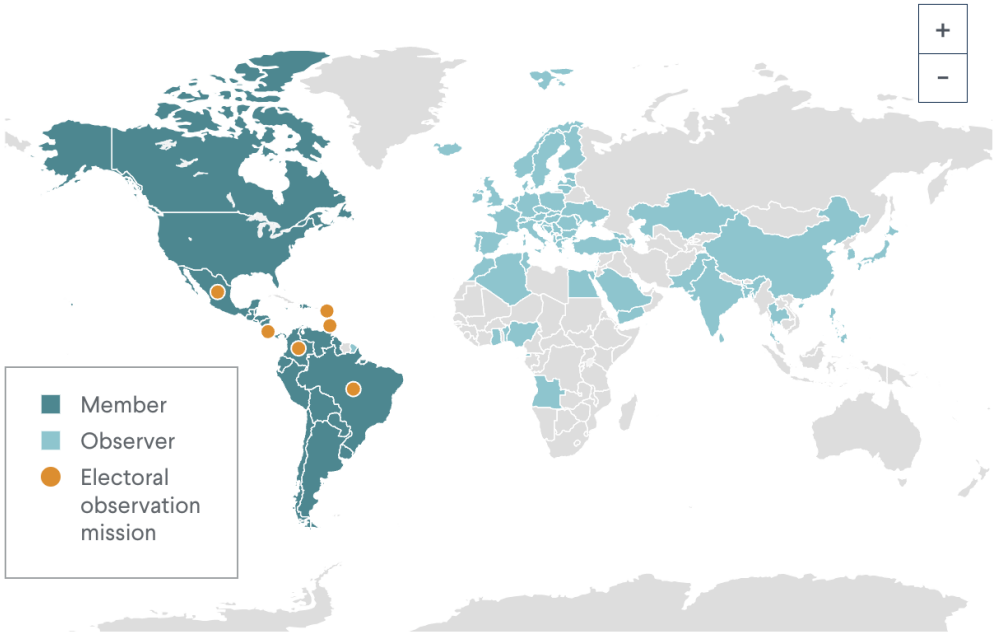
Regional Organisations

Organization of American States (OAS) 1948

Chapter V - Pacific settlement of disputes (Arts. 24-27)

Article 24
International disputes between Member States shall be submitted to the peaceful procedures set forth in this Charter.
…

Article 25
The following are peaceful procedures: direct negotiation, good offices, mediation, investigation and conciliation, judicial settlement, arbitration, and those which the parties to the dispute may especially agree upon at any time.



Note: Cuba and Russia were suspended in 1962 and 2022, respectively. The European Union (EU) is an OAS observer, while individual EU states are also observers.

Source: Organization of American States.

COUNCIL on FOREIGN RELATIONS

Regional Organisations

The Arab League

- ✓ Established in 1945
- ✓ Headquartered in Cairo, Egypt
- ✓ Aim to increase cooperation between Arab States
- ✓ 22 Members
- ✓ Founding members: Egypt, Iraq, Lebanon, Saudi Arabia, Syria, Transjordan, and Yemen

Article 5, Charter of the Arab League

The recourse to force for the settlement of disputes between two or more member States shall not be allowed. …

The Council shall mediate in a dispute which may lead to war between two member States or between a member State and another State in order to conciliate them.

The decisions relating to arbitration and mediation shall be taken by a majority vote.

Article 7, Charter of the Arab League

The decisions of the Council taken by a unanimous vote shall be binding on all the member States of the League; those that are reached by a majority vote shall bind only those that accept them.

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Regional Organisations
Europe

- ✓ **Council of Europe**
  - European Convention for the Peaceful Settlement of Disputes
- ✓ **Organization for Security and Co-operation in Europe (OSCE)**
  - 57 participating states and the largest regional security organization
  - Members from North American, Europe and Asia
  - Convention on Conciliation and Arbitration within the OSCE (1992):

    Established the Court of Conciliation and Arbitration based in Geneva, provides a mechanism for the peaceful settlement of disputes between States (Art. 1).
- ✓ **North Atlantic Treaty Organization (NATO)**

Regional Organisations

ASEAN

Treaty of Amity and Cooperation in Southeast Asia

Art. 2

In their relations with one another, the High Contracting Parties shall be guided by the following fundamental principles:

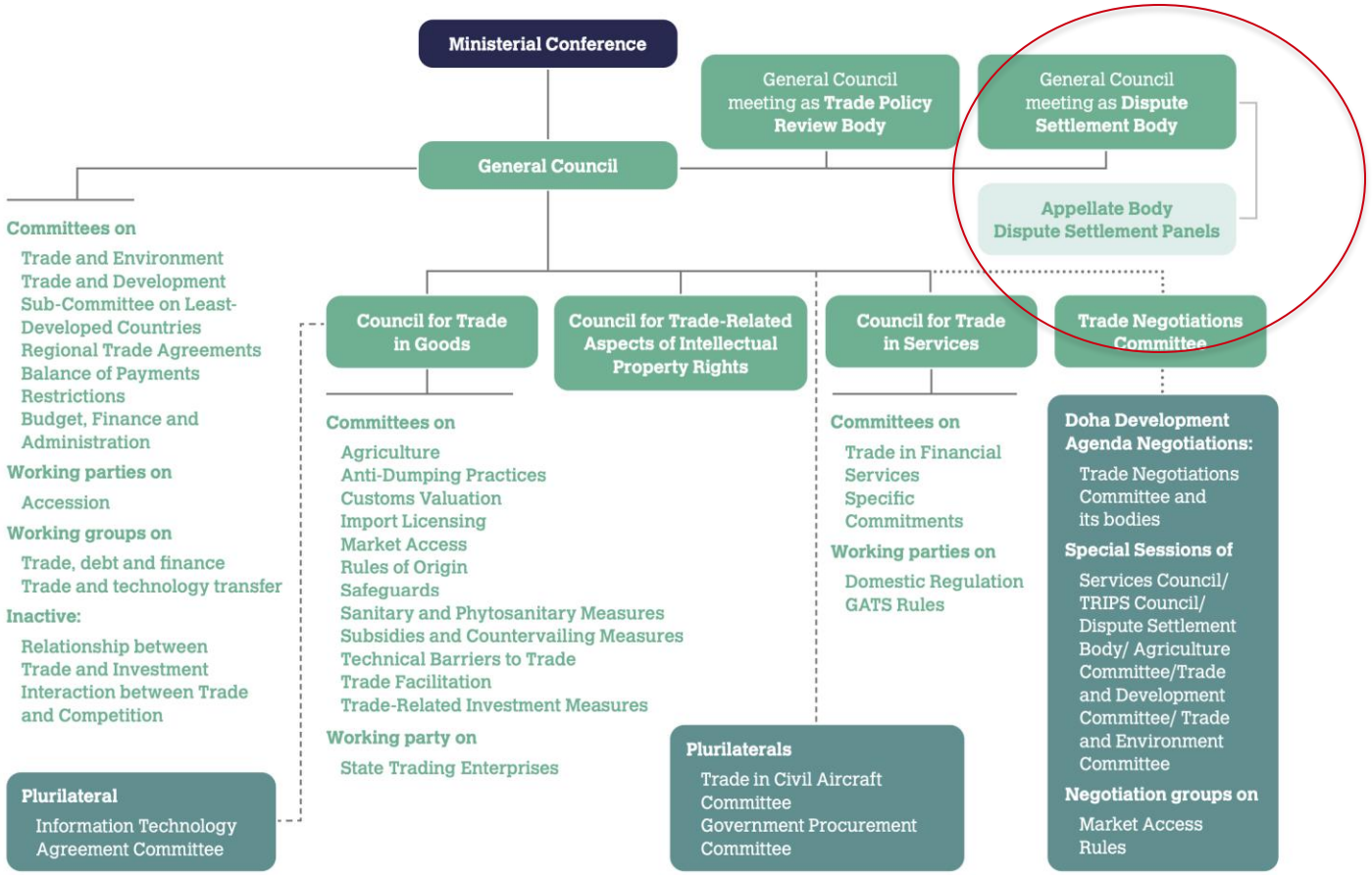
…

(d) Settlement of differences or disputes by peaceful means …

Chapter IV Pacific Settlement of Dispute (Art. 13 – 17)

Settlement of Economic Disputes

World Trade Organization (WTO)



Settlement of Economic Disputes

World Trade Organization (WTO)

➔ **Reduction of Tariffs**
- Fixed upper limits on tariffs (Art. II + Schedule)

➔ **General Prohibition on non-tariff barriers (art. XI)**

➔ **Non-discrimination**
- Most Favoured Nations Treatment
- National Treatment

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WORLD TRADE ORGANIZATION

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Annex 2 of the WTO Agreement: Understanding on rules and procedures governing the settlement of disputes

60 days	Consultations, mediation, etc
45 days	Panel set up and panellists appointed
6 months	Final panel report to parties
3 weeks	Final panel report to WTO members
60 days	Dispute Settlement Body adopts report (if no appeal)
Total = 1 year	**(without appeal)**
60-90 days	Appeals report
30 days	Dispute Settlement Body adopts appeals report
Total = 1y 3m	**(with appeal)**

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